

25STCV02597 25STCV02597

County: los-angeles

Division: Civil Law and Motion

Department: 20

Hearing date: 2026-06-29

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C20%2C06%2F29%2F2026

Source SHA-256: d0c14db51843983146091a4d33312109d5551aa773031fc46295da8220bf846c

Case Number: 25STCV02597 Hearing Date: June 29, 2026 Dept: 20

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: June 29, 2026

Case Name: Daley v. Siemens Industry, Inc., et al.

Case No.: 25STCV02597

Matter: Motions to Compel Further Responses (7x)

Ruling: Panasonic's three Motions to Compel are continued to July 20,

2026.

Daikin's Motion is granted.

Plaintiff's three Motions are denied.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On January 30, 2025, Plaintiff Douglas Daley filed the operative Complaint for (1) violation of Song-Beverly Act, (2) violation of Magnuson-Moss Act, (3) negligent repair, (4) breach of contract/implied covenant of good faith and fair dealing, (5)

fraud/concealment, (6) elder abuse, and (7) theft by false pretenses.

Plaintiff alleges as follows: Defendants Aviv Shitrit, Tal Shitrit, Eco Home Solutions, Inc., and others visited his home without solicitation; Defendants told Plaintiff that he needed to replace his solar panel, electrical panel, and HVAC system; Plaintiff refused; despite this, the Shitrits and others obtained a fraudulent loan in Plaintiff's name by forging his signature and then replaced the aforementioned components without consent; and the new solar panel, electrical panel, and HVAC system are defective and cannot be repaired.

There are now seven Motions to Compel Further Responses at issue.

Panasonic's Three Motions

Defendant Panasonic Corporation of North America's three Motions to Compel are continued to July 20, 2026, because opposing counsel apparently did not receive the Motions.

Daikin's One Motion

Defendant Daikin Comfort Technologies Manufacturing, Inc. seeks to compel further responses from Plaintiff as to its requests for production.

Plaintiff is ordered to serve verified, further, code-compliant responses and organize document productions within 20 days as follows:

Boilerplate Objections: All uniform, copy-and-pasted boilerplate objections asserted across the discovery set are overruled.

Elimination of Evasive Responses: Plaintiff must remove hybrid "comply in part" statements. For each request, Plaintiff must state a clear intent to comply fully or a representation of inability to comply after a diligent inquiry.

Document Organization: Plaintiff must organize and label the 200+ pages of previously produced documents to correspond directly with the specific categories in DCTM's demands, rather than providing an unindexed document dump.

Privilege Log Mandate: To the extent any documents are withheld under a claim of attorney-client privilege or work-product protection, Plaintiff must provide a comprehensive privilege log detailing the required factual foundations under CCP § 2031.240(c).

RFP No. 13 (Confidentiality Dispute): Plaintiff cannot withhold communications under a private third-party confidentiality agreement. Unredacted documents must be produced, subject to a protective order.

RFP No. 35 (Damages Records): Plaintiff must provide full, code-compliant responses and complete document productions establishing the factual and financial basis of the affirmative property damages and financial losses claimed in the Complaint.

No sanctions

Plaintiff's Three Motions

Plaintiff seeks to compel further responses to his requests for production from Defendants Aviv Shitrit, Tal Shitrit, Eco Home Solutions. Plaintiff asserts three motions.

Plaintiff failed to comply with the statutory mandate to engage in a reasonable, good faith meet-and-confer process under Code of Civil Procedure section 2031.310. After issuing a second meet-and-confer letter on December 29, 2025, that unilaterally set a compliance deadline of January 9, 2026, Plaintiff prematurely filed these motions on January 4 and 5, 2026—depriving Defendants of the opportunity to resolve the issues informally.

Therefore, the Motions are denied.

No sanctions.

Moving party to give notice.